

§ 342.1. The fact-finding hearing; order of procedure. The order of the fact-finding hearing shall be as follows:

1. The court shall permit the parties to deliver opening addresses. If both parties deliver opening addresses, the presentment agency's address shall be delivered first.

2. The presentment agency must offer evidence in support of the petition.

3. The respondent may offer evidence in his defense.

4. The presentment agency may offer evidence in rebuttal of the respondent's evidence, and the respondent may then offer evidence in rebuttal of the presentment agency's evidence. The court may in its discretion permit the parties to offer further rebuttal or surrebuttal evidence in this pattern. In the interest of justice, the court may permit either party to offer evidence upon rebuttal which is not technically of a rebuttal nature but more properly a part of the offering party's original case.

5. At the conclusion of the evidence, the respondent shall have the right to deliver a summation.

6. The presentment agency shall then have the right to deliver a summation.

7. The court must then consider the case and enter a finding.